

ALITO, J., dissenting

In the present case, the district attorney made a brief proffer, but important questions were left hanging. It would not be unduly burdensome to insist on answers before enforcing the subpoena.

One obvious question concerns the scope of the subpoena. The subpoena issued by the grand jury is largely a copy of the subpoenas issued by Committees of the House of Representatives, and it would be quite a coincidence if the records relevant to an investigation of possible violations of New York criminal law just so happened to be almost identical to the records thought by congressional Committees to be useful in considering federal legislation. It is therefore appropriate to ask the district attorney to explain the need for the various items that the subpoena covers.

The district attorney should also explain why it is important that the information in question be obtained from the President's records rather than another source. See, e.g., *Nixon*, 418 U. S., at 702; *Sealed Case*, 121 F. 3d, at 755. And the district attorney should set out why he finds it necessary that the records be produced now as opposed to when the President leaves office. At argument, respondent's counsel told us that his office's concern is the expiration of the statute of limitations,¹¹ but there are potential solutions to that problem. Even if New York law does not automatically suspend the statute of limitations for prosecuting a President until he leaves office,¹² it may be possible to eliminate the problem by waiver.¹³ And if the prosecutor's statute-of-

¹¹ Tr. of Oral Arg. 77, 102.

¹² See N. Y. Crim. Proc. Law Ann. § 30.10(4)(a) (West 2010) (statute tolled when defendant outside the jurisdiction); see also *People v. Knobel*, 94 N. Y. 2d 226, 230, 723 N. E. 2d 550, 552 (1999) (explaining New York rule for tolling the limitations period when a defendant is "continuously outside" the State and concluding that "all periods of a day or more that a nonresident defendant is out-of-State should be totaled and toll the Statute of Limitations").

¹³ See *People v. Parilla*, 8 N. Y. 3d 654, 659, 870 N. E. 2d 142, 145 (2007); R. Davis & T. Muskus, New York Practice With Forms, 33A Carmody-Wait 2d § 186:34 (June 2020).

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limitations concerns relate to parties other than the President, he should be required to spell that out.

There may be other good reasons why immediate enforcement is important, such as the risk that evidence or important leads will be lost, but if a prosecutor believes that immediate enforcement is needed for such a reason, the prosecutor should be required to provide a reasonably specific explanation why that is so and why alternative means, such as measures to preserve evidence and prevent spoliation, would not suffice.

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Unlike this rule, which would not undermine any legitimate state interests, the opinion of the Court provides no real protection for the Presidency. The Court discounts the risk of harassment and assumes that state prosecutors will observe constitutional limitations, *ante*, at 805–808, and I also assume that the great majority of state prosecutors will carry out their responsibilities responsibly. But for the reasons noted, there is a very real risk that some will not.

The Court emphasizes the protection afforded by “long-standing rules of grand jury secrecy,” *ante*, at 804, but that is no answer to the burdens that subpoenas may inflict, and in any event, grand jury secrecy rules are of limited value as safeguards against harassment. State laws on grand jury secrecy vary and often do not set out disclosure restrictions with the same specificity as federal law.¹⁴

Under New York law, the decision whether to disclose grand jury evidence is committed to the discretion of the supervising judge under a test that simply balances the need for secrecy against “the public interest.” *In re District Attorney of Suffolk Cty.*, 58 N. Y. 2d 436, 444, 448 N. E. 2d 440, 443–444 (1983); see also *People v. Fetcho*, 91 N. Y. 2d 765, 769, 698 N. E. 2d 935, 938 (1998). That test provides no solid protection for the Presidency. Reported New York decisions do not deal with whether this test restricts disclosure

¹⁴S. Beale et al., *Grand Jury Law and Practice* §§5:3–5:4 (2d ed. 2018).

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to, among others, a congressional committee, the state legislature, or the state attorney general and her staff for the purpose of civil litigation. Indeed, since New York legislators have attempted to enact laws to force the disclosure of some of the subpoenaed information, it is not impossible to imagine a trial judge's finding that public disclosure is in the "public interest." And even where grand jury information is not lawfully disclosed, confidential law enforcement information is avidly sought by the media in high-profile cases, leaks of such information are not uncommon, and those responsible are seldom called to account.

The Court notes that "grand juries are prohibited from engaging" in "fishing expeditions," *ante*, at 805, but an objection on that ground is a very long shot under New York law. In New York, a grand jury subpoena need not be supported by probable cause, *In re Nassau Cty. Grand Jury Subpoena Duces Tecum Dated June 24, 2003*, 4 N. Y. 3d 665, 677–678, 830 N. E. 2d 1118, 1126 (2005), and a party seeking to quash a subpoena must show that the documents sought "can have no conceivable relevance to any legitimate object of investigation." *In re Grand Jury Subpoenas for Locals 17, 135, and 608*, 72 N. Y. 2d 307, 317, 528 N. E. 2d 1195, 1201 (1988) (quoting *Virag v. Hynes*, 54 N. Y. 2d 437, 444, 430 N. E. 2d 1249, 1253 (1981)).

The Court says that a President can "argue that compliance with a particular subpoena would impede his constitutional duties," *ante*, at 810 (emphasis added), but under the Court's opinions in this case and *Mazars*, it is not easy to see how such an argument could prevail. The Court makes clear that any stigma or damage to a President's reputation does not count, *ante*, at 803–804, and in *Mazars*, the Court states that "burdens on the President's time and attention" are generally not of constitutional concern, 591 U. S., at 871. Elsewhere in its opinion in this case, the Court takes the position that when a President's non-official records are subpoenaed, his treatment should be little different from that of any other

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subpoena recipient. *Ante*, at 807–808. The most that the Court holds out is the possibility that there might be some unspecified extraordinary circumstances under which a President might obtain relief.

Finally, the Court touts the ability of a President to challenge a subpoena by “‘an affirmative showing of impropriety,’ including ‘bad faith’” or retaliation for official acts. *Ante*, at 805. But “such objections are almost universally overruled.” S. Beale et al., *Grand Jury Law and Practice* § 6:23, p. 6–243 (2d ed. 2014). Direct evidence of impropriety is rarely obtainable, and it will be a challenge to make a circumstantial case unless the prosecutor is required to provide the sort of showing outlined above.

For all practical purposes, the Court’s decision places a sitting President in the same unenviable position as any other person whose records are subpoenaed by a grand jury. See *ante*, at 807–808.

Attempting to justify this approach, the Court relies on Marshall’s ruling in the Burr trial, but the Court ignores important differences between the situation in that case and the situation here. First, the subpoena in *Burr* was not issued by a grand jury at the behest of a prosecutor who was investigating the President. Instead, a defendant who was initially on trial for his life sought to obtain exculpatory evidence from the very man who was orchestrating the prosecution. *Ante*, at 795. Marshall’s ruling took note of the context in which the evidence was sought. He stated: “If there be a paper in the possession of the executive, which is not of an official nature, he must stand, as respects that paper, in nearly the same situation with any other individual who possesses a paper *which might be required for the defence*.” *Burr*, 25 F. Cas., at 191 (emphasis added).

Second, it is significant that Burr, unlike the prosecutor in the present case, did not have the option of postponing his request for information until the President’s term ended. Burr had not chosen to be charged or tried while Jefferson

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was in office, and by the time Jefferson's tenure ended, his trial was history. Third, because the case was prosecuted in federal court under federal law, it entirely lacked the federalism concerns that lie at the heart of the present case.

The lesson we should take from Marshall's jurisprudence is the lesson of *McCulloch*—the importance of preventing a State from undermining the lawful exercise of authority conferred by the Constitution on the Federal Government. There is considerable irony in the Court's invocation of Marshall to defend a decision allowing a State's prosecutorial power to run roughshod over the functioning of a branch of the Federal Government.

The Court's other examples of Presidential subpoenas, far from supporting the Court's holding, actually show that usual procedures have been substantially altered in cases involving Presidents. In every one of the examples, a President did not testify in person, as is almost always required when a witness is subpoenaed to testify at a criminal trial or before a grand jury, but instead was deposed. *Ante*, at 797–798. The examples involving Presidents Ford and Carter occurred under modern federal rules of procedure, and allowing them to testify by deposition represented a sharp departure from conventional practice.¹⁵

¹⁵ When President Ford was subpoenaed as a defense witness in the trial of a woman who had attempted to assassinate him, the District Court ruled that Federal Rule of Criminal Procedure 15 allowed him to be deposed at a place of his choosing, instead of testifying in person, and provided for defense counsel but not the defendant herself to be present. Then, as now, Rule 15 permits a witness to be deposed under “exceptional circumstances” in order “to preserve testimony for trial.” This Rule is generally used when a witness may not be available to testify at trial, not simply when it would be burdensome or inconvenient for the witness to appear. The judge's application of the Rule in this case was innovative. In addition, the defendant was not present when President Ford was deposed. Repeating such a practice today might run into other obstacles. See *Coy v. Iowa*, 487 U. S. 1012, 1020–1021 (1988); see also Rule 15(c) (providing for the defendant's presence during the deposition).

A similar procedure appears to have been followed when President Carter testified as a prosecution witness in a criminal trial. No reported case

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The Court turns to *United States v. Nixon*, 418 U. S. 683, but that case arose under markedly different circumstances. Because the trial was in federal court, there was no issue of federalism, and the Court refused to order that the subpoena be quashed because of “the demonstrated, specific need for evidence in a pending criminal trial.” *Id.*, at 713. In the case now before us, a “demonstrated, specific need” is precisely what is lacking.

This Court’s decision in *Clinton v. Jones*, 520 U. S. 681, provides no greater support for today’s decision. In that case, as noted, the lawsuit was brought in federal, not state, court, and while the subject of that particular civil suit was embarrassing, the Court addressed the broad question whether a President is immune from civil suits “in all but the most exceptional cases.” *Id.*, at 692. There is no question that a criminal prosecution holds far greater potential for distracting a President and diminishing his ability to carry out his responsibilities than does the average civil suit.

* * *

The subpoena at issue here is unprecedented. Never before has a local prosecutor subpoenaed the records of a sitting President. The Court’s decision threatens to impair the functioning of the Presidency and provides no real protection against the use of the subpoena power by the Nation’s 2,300+ local prosecutors. Respect for the structure of Government created by the Constitution demands greater protection for an institution that is vital to the Nation’s safety and well-being.

I therefore respectfully dissent.

explains the legal authority cited as justification for excusing live testimony, but Rule 15 may have been invoked. As for President Carter’s testimony by deposition before a grand jury, although neither the Federal Rules of Evidence nor the Confrontation Clause apply to federal grand jury proceedings, testimony by deposition is nevertheless not the norm.

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TRUMP ET AL. v. MAZARS USA, LLP, ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE DISTRICT OF COLUMBIA CIRCUIT

No. 19–715. Argued May 12, 2020—Decided July 9, 2020*

In April 2019, three committees of the U. S. House of Representatives issued four subpoenas seeking information about the finances of President Donald J. Trump, his children, and affiliated businesses. The House Committee on Financial Services issued a subpoena to Deutsche Bank seeking any document related to account activity, due diligence, foreign transactions, business statements, debt schedules, statements of net worth, tax returns, and suspicious activity identified by Deutsche Bank. It issued a second subpoena to Capital One for similar information. The Permanent Select Committee on Intelligence issued a subpoena to Deutsche Bank that mirrored the subpoena issued by the Financial Services Committee. And the House Committee on Oversight and Reform issued a subpoena to the President's personal accounting firm, Mazars USA, LLP, demanding information related to the President and several affiliated businesses. Although each of the committees sought overlapping sets of financial documents, each supplied different justifications for the requests, explaining that the information would help guide legislative reform in areas ranging from money laundering and terrorism to foreign involvement in U. S. elections. Petitioners—the President in his personal capacity, along with his children and affiliated businesses—contested the subpoena issued by the Oversight Committee in the District Court for the District of Columbia (*Mazars*, No. 19–715) and the subpoenas issued by the Financial Services and Intelligence Committees in the Southern District of New York (*Deutsche Bank*, No. 19–760). In both cases, petitioners contended that the subpoenas lacked a legitimate legislative purpose and violated the separation of powers. The President did not, however, argue that any of the requested records were protected by executive privilege.

In *Mazars*, the District Court granted judgment for the House and the D. C. Circuit affirmed, finding that the subpoena issued by the Oversight Committee served a valid legislative purpose because the requested information was relevant to reforming financial disclosure requirements for Presidents and presidential candidates. In *Deutsche*

*Together with No. 19–760, *Trump et al. v. Deutsche Bank AG et al.*, on certiorari to the United States Court of Appeals for the Second Circuit.

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Bank, the District Court denied a preliminary injunction and the Second Circuit affirmed in substantial part, holding that the Intelligence Committee properly issued its subpoena to Deutsche Bank as part of an investigation into alleged foreign influence in the U. S. political process, which could inform legislation to strengthen national security and combat foreign meddling. The court also concluded that the subpoenas issued by the Financial Services Committee to Deutsche Bank and Capital One were adequately related to potential legislation on money laundering, terrorist financing, and the global movement of illicit funds through the real estate market.

Held: The courts below did not take adequate account of the significant separation of powers concerns implicated by congressional subpoenas for the President's information. Pp. 858–871.

(a) Historically, disputes over congressional demands for presidential documents have been resolved by the political branches through negotiation and compromise without involving this Court. The Court recognizes that this dispute is the first of its kind to reach the Court; that such disputes can raise important issues concerning relations between the branches; that similar disputes recur on a regular basis, including in the context of deeply partisan controversy; and that Congress and the Executive have nonetheless managed for over two centuries to resolve these disputes among themselves without Supreme Court guidance. Such longstanding practice “is a consideration of great weight” in cases concerning “the allocation of power between [the] two elected branches of Government,” and it imposes on the Court a duty of care to ensure that it does not needlessly disturb “the compromises and working arrangements” reached by those branches. *NLRB v. Noel Canning*, 573 U. S. 513, 524–526 (quoting *The Pocket Veto Case*, 279 U. S. 655, 689). Pp. 858–862.

(b) Each House of Congress has the power “to secure needed information” in order to legislate. *McGrain v. Daugherty*, 273 U. S. 135, 161. This power is “indispensable” because, without information, Congress would be unable to legislate wisely or effectively. *Watkins v. United States*, 354 U. S. 178, 215. Because this power is “justified solely as an adjunct to the legislative process,” it is subject to several limitations. *Id.*, at 197. Most importantly, a congressional subpoena is valid only if it is “related to, and in furtherance of, a legitimate task of the Congress.” *Id.*, at 187. The subpoena must serve a “valid legislative purpose.” *Quinn v. United States*, 349 U. S. 155, 161. Furthermore, Congress may not issue a subpoena for the purpose of “law enforcement,” because that power is assigned to the Executive and the Judiciary. *Ibid.* Finally, recipients of congressional subpoenas retain their consti-

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tutional rights and various privileges throughout the course of an investigation. Pp. 862–863.

(c) The President contends, as does the Solicitor General on behalf of the United States, that congressional subpoenas for the President's information should be evaluated under the standards set forth in *United States v. Nixon*, 418 U.S. 683, and *Senate Select Committee on Presidential Campaign Activities v. Nixon*, 498 F.2d 725, which would require the House to show that the requested information satisfies a “demonstrated, specific need,” 418 U.S., at 713, and is “demonstrably critical” to a legislative purpose, 498 F.2d, at 731. *Nixon* and *Senate Select Committee*, however, involved subpoenas for communications between the President and his close advisers, over which the President asserted executive privilege. Because executive privilege safeguards the public interest in candid, confidential deliberations within the Executive Branch, information subject to the privilege deserves “the greatest protection consistent with the fair administration of justice.” 418 U.S., at 715. That protection should not be transplanted root and branch to cases involving nonprivileged, private information, which by definition does not implicate sensitive Executive Branch deliberations. The standards proposed by the President and the Solicitor General—if applied outside the context of privileged information—would risk seriously impeding Congress in carrying out its responsibilities, giving short shrift to its important interests in conducting inquiries to obtain information needed to legislate effectively. Pp. 863–865.

(d) The approach proposed by the House, which relies on precedents that did not involve the President's papers, fails to take adequate account of the significant separation of powers issues raised by congressional subpoenas for the President's information. The House's approach would leave essentially no limits on the congressional power to subpoena the President's personal records. A limitless subpoena power could transform the established practice of the political branches and allow Congress to aggrandize itself at the President's expense. These separation of powers concerns are unmistakably implicated by the subpoenas here, which represent not a run-of-the-mill legislative effort but rather a clash between rival branches of government over records of intense political interest for all involved. The interbranch conflict does not vanish simply because the subpoenas seek personal papers or because the President sued in his personal capacity. Nor are separation of powers concerns less palpable because the subpoenas were issued to third parties. Pp. 865–868.

(e) Neither side identifies an approach that adequately accounts for these weighty separation of powers concerns. A balanced approach is

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necessary, one that takes a “considerable impression” from “the practice of the government,” *McCulloch v. Maryland*, 4 Wheat. 316, 401, and “resist[s]” the “pressure inherent within each of the separate Branches to exceed the outer limits of its power,” *INS v. Chadha*, 462 U. S. 919, 951. In assessing whether a subpoena directed at the President’s personal information is “related to, and in furtherance of, a legitimate task of the Congress,” *Watkins*, 354 U. S., at 187, courts must take adequate account of the separation of powers principles at stake, including both the significant legislative interests of Congress and the unique position of the President.

Several special considerations inform this analysis. First, courts should carefully assess whether the asserted legislative purpose warrants the significant step of involving the President and his papers. “[O]ccasion[s] for constitutional confrontation between the two branches’ should be avoided whenever possible.” *Cheney v. United States Dist. Court for D. C.*, 542 U. S. 367, 389–390 (quoting *Nixon*, 418 U. S., at 692). Congress may not rely on the President’s information if other sources could reasonably provide Congress the information it needs in light of its particular legislative objective. Second, to narrow the scope of possible conflict between the branches, courts should insist on a subpoena no broader than reasonably necessary to support Congress’s legislative objective. The specificity of the subpoena’s request “serves as an important safeguard against unnecessary intrusion into the operation of the Office of the President.” *Cheney*, 542 U. S., at 387. Third, courts should be attentive to the nature of the evidence offered by Congress to establish that a subpoena advances a valid legislative purpose. The more detailed and substantial, the better. That is particularly true when Congress contemplates legislation that raises sensitive constitutional issues, such as legislation concerning the Presidency. Fourth, courts should assess the burdens imposed on the President by a subpoena, particularly because they stem from a rival political branch that has an ongoing relationship with the President and incentives to use subpoenas for institutional advantage. Other considerations may be pertinent as well; one case every two centuries does not afford enough experience for an exhaustive list. Pp. 869–871.

No. 19–715, 940 F. 3d 710; No. 19–760, 943 F. 3d 627, vacated and remanded.

ROBERTS, C. J., delivered the opinion of the Court, in which GINSBURG, BREYER, SOTOMAYOR, KAGAN, GORSUCH, and KAVANAUGH, JJ., joined. THOMAS, J., *post*, p. 871, and ALITO, J., *post*, p. 891, filed dissenting opinions.

Counsel

Patrick Strawbridge argued the cause for petitioners. With him on the briefs were *William S. Consovoy*, *Thomas R. McCarthy*, *Jay Alan Sekulow*, *Stuart J. Roth*, *Jordan Sekulow*, and *Stefan C. Passantino*.

Deputy Solicitor General Wall argued the cause for the United States as *amicus curiae* urging reversal. With him on the briefs were *Solicitor General Francisco*, *Assistant Attorney General Hunt*, *Deputy Assistant Attorney General Mooppan*, *Sopan Joshi*, *Mark R. Freeman*, and *Gerard J. Sinzduk*.

Douglas N. Letter argued the cause for the Committees of the United States House of Representatives respondents. With him on the briefs were *Megan Barbero*, *Adam A. Grogg*, *Lawrence S. Robbins*, *Roy T. Englert, Jr.*, *Alan D. Strasser*, *Jennifer S. Windom*, and *Brandon L. Arnold*.[†]

[†]Briefs of *amici curiae* urging reversal in both cases were filed for Christian Family Coalition Florida, Inc., by *Dennis Grossman*; for the Eagle Forum Education & Legal Defense Fund by *Lawrence J. Joseph*; for the Foundation for Moral Law by *Matthew J. Clark*; and for W. Burette Carter, by *Ms. Carter, pro se*.

Briefs of *amici curiae* urging affirmance in both cases were filed for the American Civil Liberties Union et al. by *Donald B. Verrilli, Jr.*, *David D. Cole*, *Arthur B. Spitzer*, *Scott Michelman*, and *Jennesa Calvo-Friedman*; for Bipartisan Former Members of Congress by *Andre M. Mura*; for the Center for Media and Democracy et al. by *Andrew J. Goodman* and *Benjamin J. Hodges*; for Congressional Scholars by *Gregory M. Lipper* and *Susan M. Simpson*; for the Constitutional Accountability Center by *Elizabeth B. Wydra*, *Brianne J. Gorod*, *Brian R. Frazelle*, and *Ashwin P. Phatak*; for Former Federal Ethics Officials by *Dwayne D. Sam* and *Patricia E. Roberts*; for Former House General Counsels et al. by *John A. Freedman* and *Andrew T. Tutt*; for Former National Security Officials by *Harold Hongju Koh*; for Former Senior Department of Justice Officials by *Rakesh N. Kilaru* and *Chanakya A. Sethi*; for the Lugar Center et al. by *William Pittard*; for the Niskanen Center et al. by *Gregory Edwin Wolff* and *Ben Feuer*; for Public Citizen by *Allison M. Zieve*, *Adam R. Pulver*, *Scott L. Nelson*, and *Kaitlin E. Leary*; for Separation-of-Powers Law Professors by *Zachary D. Tripp*, *Martin S. Lederman, pro se*, and *Gregory Silbert*; and for Sean J. Kealy et al. by *Mr. Kealy* and *James J. Wheaton, both pro se*. *Steven E. Fineman, Daniel*

Opinion of the Court

CHIEF JUSTICE ROBERTS delivered the opinion of the Court.

Over the course of five days in April 2019, three committees of the U. S. House of Representatives issued four subpoenas seeking information about the finances of President Donald J. Trump, his children, and affiliated businesses. We have held that the House has authority under the Constitution to issue subpoenas to assist it in carrying out its legislative responsibilities. The House asserts that the financial information sought here—encompassing a decade’s worth of transactions by the President and his family—will help guide legislative reform in areas ranging from money laundering and terrorism to foreign involvement in U. S. elections. The President contends that the House lacked a valid legislative aim and instead sought these records to harass him, expose personal matters, and conduct law enforcement activities beyond its authority. The question presented is whether the subpoenas exceed the authority of the House under the Constitution.

We have never addressed a congressional subpoena for the President’s information. Two hundred years ago, it was established that Presidents may be subpoenaed during a federal criminal proceeding, *United States v. Burr*, 25 F. Cas. 30 (No. 14,692d) (CC Va. 1807) (Marshall, Cir. J.), and earlier today we extended that ruling to state criminal proceedings, *Trump v. Vance*, 591 U. S. 786 (2020). Nearly fifty years ago, we held that a federal prosecutor could obtain information from a President despite assertions of executive privilege, *United States v. Nixon*, 418 U. S. 683 (1974), and more recently we ruled that a private litigant could subject a President to a damages suit and appropriate discovery obligations in federal court, *Clinton v. Jones*, 520 U. S. 681 (1997).

P. Chiplock, and *Jonathan J. Rusch*, *pro se*, filed a brief for Financial Investigation and Money Laundering Experts as *amici curiae* in No. 19–760 urging affirmance.

Victor Williams, *pro se*, filed a brief of *amicus curiae*.

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This case is different. Here the President's information is sought not by prosecutors or private parties in connection with a particular judicial proceeding, but by committees of Congress that have set forth broad legislative objectives. Congress and the President—the two political branches established by the Constitution—have an ongoing relationship that the Framers intended to feature both rivalry and reciprocity. See *The Federalist* No. 51, p. 349 (J. Cooke ed. 1961) (J. Madison); *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U. S. 579, 635 (1952) (Jackson, J., concurring). That distinctive aspect necessarily informs our analysis of the question before us.

I

A

Each of the three committees sought overlapping sets of financial documents, but each supplied different justifications for the requests.

The House Committee on Financial Services issued two subpoenas, both on April 11, 2019. App. 128, 154, 226. The first, issued to Deutsche Bank, seeks the financial information of the President, his children, their immediate family members, and several affiliated business entities. Specifically, the subpoena seeks any document related to account activity, due diligence, foreign transactions, business statements, debt schedules, statements of net worth, tax returns, and suspicious activity identified by Deutsche Bank. The second, issued to Capital One, demands similar financial information with respect to more than a dozen business entities associated with the President. The Deutsche Bank subpoena requests materials from “2010 through the present,” and the Capital One subpoena covers “2016 through the present,” but both subpoenas impose no time limitations for certain documents, such as those connected to account openings and due diligence. *Id.*, at 128, 155.

According to the House, the Financial Services Committee issued these subpoenas pursuant to House Resolution 206,

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which called for “efforts to close loopholes that allow corruption, terrorism, and money laundering to infiltrate our country’s financial system.” H. Res. 206, 116th Cong., 1st Sess., 5 (Mar. 13, 2019). Such loopholes, the resolution explained, had allowed “illicit money, including from Russian oligarchs,” to flow into the United States through “anonymous shell companies” using investments such as “luxury high-end real estate.” *Id.*, at 3. The House also invokes the oversight plan of the Financial Services Committee, which stated that the Committee intends to review banking regulation and “examine the implementation, effectiveness, and enforcement” of laws designed to prevent money laundering and the financing of terrorism. H. R. Rep. No. 116–40, p. 84 (2019). The plan further provided that the Committee would “consider proposals to prevent the abuse of the financial system” and “address any vulnerabilities identified” in the real estate market. *Id.*, at 85.

On the same day as the Financial Services Committee, the Permanent Select Committee on Intelligence issued an identical subpoena to Deutsche Bank—albeit for different reasons. According to the House, the Intelligence Committee subpoenaed Deutsche Bank as part of an investigation into foreign efforts to undermine the U. S. political process. Committee Chairman Adam Schiff had described that investigation in a previous statement, explaining that the Committee was examining alleged attempts by Russia to influence the 2016 election; potential links between Russia and the President’s campaign; and whether the President and his associates had been compromised by foreign actors or interests. Press Release, House Permanent Select Committee on Intelligence, Chairman Schiff Statement on House Intelligence Committee Investigation (Feb. 6, 2019). Chairman Schiff added that the Committee planned “to develop legislation and policy reforms to ensure the U. S. government is better positioned to counter future efforts to undermine our political process and national security.” *Ibid.*

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Four days after the Financial Services and Intelligence Committees, the House Committee on Oversight and Reform issued another subpoena, this time to the President's personal accounting firm, Mazars USA, LLP. The subpoena demanded information related to the President and several affiliated business entities from 2011 through 2018, including statements of financial condition, independent auditors' reports, financial reports, underlying source documents, and communications between Mazars and the President or his businesses. The subpoena also requested all engagement agreements and contracts "[w]ithout regard to time." App. to Pet. for Cert. in 19–715, p. 230.

Chairman Elijah Cummings explained the basis for the subpoena in a memorandum to the Oversight Committee. According to the chairman, recent testimony by the President's former personal attorney Michael Cohen, along with several documents prepared by Mazars and supplied by Cohen, raised questions about whether the President had accurately represented his financial affairs. Chairman Cummings asserted that the Committee had "full authority to investigate" whether the President: (1) "may have engaged in illegal conduct before and during his tenure in office," (2) "has undisclosed conflicts of interest that may impair his ability to make impartial policy decisions," (3) "is complying with the Emoluments Clauses of the Constitution," and (4) "has accurately reported his finances to the Office of Government Ethics and other federal entities." App. in No. 19–5142 (CADC), p. 107. "The Committee's interest in these matters," Chairman Cummings concluded, "informs its review of multiple laws and legislative proposals under our jurisdiction." *Ibid.*

B

Petitioners—the President in his personal capacity, along with his children and affiliated businesses—filed two suits challenging the subpoenas. They contested the subpoena issued by the Oversight Committee in the District Court for

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the District of Columbia (*Mazars*, No. 19–715), and the subpoenas issued by the Financial Services and Intelligence Committees in the Southern District of New York (*Deutsche Bank*, No. 19–760). In both cases, petitioners contended that the subpoenas lacked a legitimate legislative purpose and violated the separation of powers. The President did not, however, resist the subpoenas by arguing that any of the requested records were protected by executive privilege. For relief, petitioners asked for declaratory judgments and injunctions preventing Mazars and the banks from complying with the subpoenas. Although named as defendants, Mazars and the banks took no positions on the legal issues in these cases, and the House committees intervened to defend the subpoenas.

Petitioners' challenges failed. In *Mazars*, the District Court granted judgment for the House, 380 F. Supp. 3d 76 (DC 2019), and the D. C. Circuit affirmed, 940 F. 3d 710 (2019). In upholding the subpoena issued by the Oversight Committee to Mazars, the Court of Appeals found that the subpoena served a "valid legislative purpose" because the requested information was relevant to reforming financial disclosure requirements for Presidents and presidential candidates. *Id.*, at 726–742 (internal quotation marks omitted). Judge Rao dissented. As she saw it, the "gravamen" of the subpoena was investigating alleged illegal conduct by the President, and the House must pursue such wrongdoing through its impeachment powers, not its legislative powers. *Id.*, at 773–774. Otherwise, the House could become a "roving inquisition over a co-equal branch of government." *Id.*, at 748. The D. C. Circuit denied rehearing en banc over several more dissents. 941 F. 3d 1180, 1180–1182 (2019).

In *Deutsche Bank*, the District Court denied a preliminary injunction, 2019 WL 2204898 (SDNY, May 22, 2019), and the Second Circuit affirmed "in substantial part," 943 F. 3d 627, 676 (2019). While acknowledging that the subpoenas are "surely broad in scope," the Court of Appeals held that the

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Intelligence Committee properly issued its subpoena to Deutsche Bank as part of an investigation into alleged foreign influence over petitioners and Russian interference with the U. S. political process. *Id.*, at 650, 658–659. That investigation, the court concluded, could inform legislation to combat foreign meddling and strengthen national security. *Id.*, at 658–659, and n. 59.

As to the subpoenas issued by the Financial Services Committee to Deutsche Bank and Capital One, the Court of Appeals concluded that they were adequately related to potential legislation on money laundering, terrorist financing, and the global movement of illicit funds through the real estate market. *Id.*, at 656–659. Rejecting the contention that the subpoenas improperly targeted the President, the court explained in part that the President’s financial dealings with Deutsche Bank made it “appropriate” for the House to use him as a “case study” to determine “whether new legislation is needed.” *Id.*, at 662–663, n. 67.¹

Judge Livingston dissented, seeing no “clear reason why a congressional investigation aimed generally at closing regulatory loopholes in the banking system need focus on over a decade of financial information regarding this President, his family, and his business affairs.” *Id.*, at 687.

We granted certiorari in both cases and stayed the judgments below pending our decision. 589 U. S. 1120 (2019).

II

A

The question presented is whether the subpoenas exceed the authority of the House under the Constitution. Histori-

¹The Court of Appeals directed a “limited” remand for the District Court to consider whether it was necessary to disclose certain “sensitive personal details” (such as documents reflecting medical services received by employees of the Trump business entities) and a “few” documents that might not relate to the committees’ legislative purposes. 943 F. 3d 627, 667–668, 675 (2019). The Court of Appeals ordered that all other documents be “promptly transmitted” to the committees. *Id.*, at 669.

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cally, disputes over congressional demands for presidential documents have not ended up in court. Instead, they have been hashed out in the “hurly-burly, the give-and-take of the political process between the legislative and the executive.” Hearings on S. 2170 et al. before the Subcommittee on Intergovernmental Relations of the Senate Committee on Government Operations, 94th Cong., 1st Sess., 87 (1975) (A. Scalia, Assistant Attorney General, Office of Legal Counsel).

That practice began with George Washington and the early Congress. In 1792, a House committee requested Executive Branch documents pertaining to General St. Clair’s campaign against the Indians in the Northwest Territory, which had concluded in an utter rout of federal forces when they were caught by surprise near the present-day border between Ohio and Indiana. See T. Taylor, *Grand Inquest: The Story of Congressional Investigations* 19–23 (1955). Since this was the first such request from Congress, President Washington called a Cabinet meeting, wishing to take care that his response “be rightly conducted” because it could “become a precedent.” 1 Writings of Thomas Jefferson 189 (P. Ford ed. 1892).

The meeting, attended by the likes of Alexander Hamilton, Thomas Jefferson, Edmund Randolph, and Henry Knox, ended with the Cabinet of “one mind”: The House had authority to “institute inquiries” and “call for papers” but the President could “exercise a discretion” over disclosures, “communicat[ing] such papers as the public good would permit” and “refus[ing]” the rest. *Id.*, at 189–190. President Washington then dispatched Jefferson to speak to individual congressmen and “bring them by persuasion into the right channel.” *Id.*, at 190. The discussions were apparently fruitful, as the House later narrowed its request and the documents were supplied without recourse to the courts. See 3 *Annals of Cong.* 536 (1792); Taylor, *supra*, at 24.

Jefferson, once he became President, followed Washington’s precedent. In early 1807, after Jefferson had disclosed

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that “sundry persons” were conspiring to invade Spanish territory in North America with a private army, 16 Annals of Cong. 686–687, the House requested that the President produce any information in his possession touching on the conspiracy (except for information that would harm the public interest), *id.*, at 336, 345, 359. Jefferson chose not to divulge the entire “voluminous” correspondence on the subject, explaining that much of it was “private” or mere “rumors” and “neither safety nor justice” permitted him to “expos[e] names” apart from identifying the conspiracy’s “principal actor”: Aaron Burr. *Id.*, at 39–40. Instead of the entire correspondence, Jefferson sent Congress particular documents and a special message summarizing the conspiracy. *Id.*, at 39–43; see generally *Vance*, 591 U. S., at 793–794. Neither Congress nor the President asked the Judiciary to intervene.²

Ever since, congressional demands for the President’s information have been resolved by the political branches without involving this Court. The Reagan and Clinton presidencies provide two modern examples:

During the Reagan administration, a House subcommittee subpoenaed all documents related to the Department of the Interior’s decision whether to designate Canada a reciprocal country for purposes of the Mineral Lands Leasing Act. President Reagan directed that certain documents be withheld because they implicated his confidential relationship with subordinates. While withholding those documents, the administration made “repeated efforts” at accommodation through limited disclosures and testimony over a period of several months. 6 Op. of Office of Legal Counsel 751, 780 (1982). Unsatisfied, the subcommittee and its parent committee eventually voted to hold the Secretary of the Interior

² By contrast, later that summer, the Judiciary *was* called on to resolve whether President Jefferson could be issued a subpoena *duces tecum* arising from Burr’s criminal trial. See *United States v. Burr*, 25 F. Cas. 30 (No. 14,692d) (CC Va. 1807); see also *Trump v. Vance*, 591 U. S. 786, 795–797 (2020).

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in contempt, and an innovative compromise soon followed: All documents were made available, but only for one day with no photocopying, minimal notetaking, and no participation by non-Members of Congress. *Id.*, at 780–781; see H. R. Rep. No. 97–898, pp. 3–8 (1982).

In 1995, a Senate committee subpoenaed notes taken by a White House attorney at a meeting with President Clinton’s personal lawyers concerning the Whitewater controversy. The President resisted the subpoena on the ground that the notes were protected by attorney-client privilege, leading to “long and protracted” negotiations and a Senate threat to seek judicial enforcement of the subpoena. S. Rep. No. 104–204, pp. 16–17 (1996). Eventually the parties reached an agreement, whereby President Clinton avoided the threatened suit, agreed to turn over the notes, and obtained the Senate’s concession that he had not waived any privileges. *Ibid.*; see L. Fisher, Congressional Research Service, Congressional Investigations: Subpoenas and Contempt Power 16–18 (2003).

Congress and the President maintained this tradition of negotiation and compromise—without the involvement of this Court—until the present dispute. Indeed, from President Washington until now, we have never considered a dispute over a congressional subpoena for the President’s records. And, according to the parties, the appellate courts have addressed such a subpoena only once, when a Senate committee subpoenaed President Nixon during the Watergate scandal. See *infra*, at 864 (discussing *Senate Select Committee on Presidential Campaign Activities v. Nixon*, 498 F. 2d 725 (CA DC 1974) (en banc)). In that case, the court refused to enforce the subpoena, and the Senate did not seek review by this Court.

This dispute therefore represents a significant departure from historical practice. Although the parties agree that this particular controversy is justiciable, we recognize that it is the first of its kind to reach this Court; that disputes